

Court No. - 38

Case :- WRIT - C No. - 6370 of 2019

Petitioner :- Gulfam

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Om Prakash Rai, Ashish Rai

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Jayant Banerji, J.

The petitioner is challenging the recovery citation demanding a sum of Rs. 1,37,055/- plus other charges pursuant to the recovery citation dated 25.1.2019. The petitioner submits that the said citation is on account of inflated bill and he disputes the bill itself.

Shri Chandan Agarwal, learned counsel appearing for the Electricity Department states that the petitioner can make a representation before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005.

This writ petition is disposed of with the observation that in case, such a representation is made by the petitioner before the Executive Engineer, the same shall be considered and decided in accordance with law within a period of one month.

For a period of one month, no coercive action shall be taken against the petitioner towards the recovery citation.

Order Date :- 22.2.2019

A. V. Singh

(Jayant Banerji, J.) (Abhinava Upadhyaya, J.)